

26TRCV01155 26TRCV01155

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CP%2C07%2F09%2F2026

Source SHA-256: 5ef2fc4a2eae902c6309fd9e19becb89419a44f7805fc1fb7b76721296b9561d

Case Number: 26TRCV01155 Hearing Date: July 9, 2026 Dept: P

Hearing

Date: July 9, 2026

Department

P, Judge David K. Reinert

Motion

for Leave to Amend Answer to Strike Incorrect Defendant

Moving

Party: Defendant

Jared Triplett

Responding Party: None

RULING

The court

considered the moving papers. Moving Defendant's Motion for Leave to Amend

Answer is GRANTED.

Superior Court

of California

County of Los

Angeles

Southwest

District

Torrance Dept. P

VARAZDAT

PAYLIYAN,

Plaintiff

Case No.:

26TRCV01155

vs.

[Tentative]

RULING RE:

MOTION

FOR LEAVE TO AMEND ANSWER TO STRIKE INCORRECT DEFENDANT

JARED

TRIPLETT; TALYA JONES; and DOES 1-50, inclusive,

Defendants.

PROCEDURAL BACKGROUND

On April 1, 2026, Plaintiff Varazdat Payliyan ("Plaintiff") filed a complaint against Defendants Jared Triplett ("Moving Defendant"), Talya Jones ("Defendant Jones"), and DOES 1 through 50, inclusive, alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence.

On May 28, 2026, Moving Defendant and Defendant Jones filed an answer.

On June 16, 2026, Moving Defendant filed the instant motion.

FACTUAL BACKGROUND

Plaintiff

alleges that on February 20, 2026, Plaintiff was driving eastbound on West Manchester Boulevard in Inglewood, California, when Moving Defendant was driving in the opposite direction of Plaintiff. (Complaint, p. 5.) Plaintiff alleges that Moving Defendant illegally entered the lanes used by oncoming traffic, causing a head-on collision with the vehicle occupied by Plaintiff. (Complaint, p. 5.) Plaintiff alleges that Defendant Jones made a right turn when she merged her vehicle onto West Manchester Boulevard, causing a collision with the vehicle driven by Moving Defendant. (Complaint, p. 5.) Plaintiff alleges that as a result, Moving Defendant lost control of his vehicle, causing it to collide with the vehicle occupied by Plaintiff. (Complaint, p. 5.)

LEGAL STANDARD

Under Code of Civil Procedure Section 473(a)(1), “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.”² Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., Section 576.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . .”³ (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or

added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)⁴⁵⁶

⁷

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number.⁸ (Cal. Rules of Court, rule 3.1324(a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion.

(Cal. Rules of Court, rule 3.1324(b).)

DISCUSSION

Moving Party's Argument

Moving Defendant seeks to amend his answer by striking Defendant Jones from it, because Defendant Jones is not represented by Moving Defendant's counsel. Moving Defendant argues that his counsel made a mistake in good faith and acted promptly and diligently upon counsel's discovery of the error. Moving Defendant argues that Plaintiff will not suffer any prejudice if leave to amend is granted because the proposed amendment does not change any substantive defenses, introduce new issues, or require additional discovery.

Merits of the Motion

Moving Defendant seeks leave to file an amended answer to strike Defendant Jones from it, because Moving Defendant's counsel does not represent Defendant Jones.

Here, Moving Defendant's counsel declares that because of "inadvertent mistake, the Answer [previously filed by Moving Defendant] improperly included co-defendant Talya Jones as a party on whose behalf the Answer was filed. (Sexton Decl., ¶ 4.) Moving Defendant's counsel explains that his office does not represent Defendant Jones in this matter, such that her inclusion in Moving Defendant's answer was unintentional. (Sexton Decl., ¶ 5.) Moving Defendant's counsel further declares that once he discovered this error, he acted "promptly and diligently to investigate the issue and prepare the present motion." (Sexton Decl., ¶ 6.) Moving Defendant's counsel declares that the proposed amendment will only remove Defendant Jones from Moving Defendant's answer to reflect that Moving Defendant's counsel solely represents Moving Defendant. (Sexton Decl., ¶ 7.) Moving Defendant's counsel declares that no party will be prejudiced by the proposed amendment because Moving Defendant's amended answer "will not affect the substance of the defenses asserted on behalf of [Moving Defendant], nor will it impact the issues in dispute or require additional discovery." (Sexton Decl., ¶ 10.)

The court finds that Moving Defendant has substantially complied with the requirements of Rule 3.1324 by attaching a copy of the proposed amended answer. (Sexton Decl., Exh. A.) [AB1] Further,

Moving Defendant's counsel's declaration shows that amendment is necessary to correct the erroneous inclusion of Defendant Jones in Moving Defendant's original answer. Moving Defendant's counsel has clearly explained that the only differences concern the omission of Defendant Jones from Moving Defendant's proposed amended answer. Therefore, the court finds that no party will be prejudiced by Moving Defendant's filing of his amended answer.

Accordingly, Moving Defendant's Motion for Leave to Amend Answer is GRANTED.

CONCLUSION

Based on the foregoing, Moving Defendant's Motion for Leave to Amend Answer is GRANTED.

Moving Defendant is ordered to separately file the amended answer and to serve Plaintiff within five days.

[AB1]

noticed that the proposed amended answer still references "Defendants" repeatedly within the affirmative defenses themselves. Would this be grounds to deny?